

Smt. Laxmi Chaurasiya v. Dakshinanchal Electricity Distribution Corporation Ltd. and 4 Others

Allahabad High Court · Division Bench · 1 July 2025 · 2025:AHC:101014-DB · Writ - C No. 11952 of 2018 · **Writ disposed of; petitioner relegated to Clause 6.5 for the billing dispute, with a time-bound statement of liability, objection, and reasoned order**

HEADNOTE

Where a tenant's fresh electricity connection is disconnected — first for the landlord's unpaid arrears at the same premises and want of landlord consent, and later, after interim restoration, for alleged default on the tenant's own bills — and the parties then dispute whether those post-restoration dues were paid, the writ court will not enter that factual controversy. The consumer is relegated to Clause 6.5 of the U.P. Electricity Supply Code, 2005. The concerned authority shall furnish details of liability within one week of being approached with a copy of the order; the consumer may object within two weeks; a reasoned order shall follow within six weeks thereafter. The writ is disposed of. The Court did not decide whether predecessor arrears or missing landlord consent justified the original disconnection, nor the quantum of post-restoration dues.

FACTUAL SUMMARY

Smt. Laxmi Chaurasiya is the tenant of a shop. The landlord had earlier taken an electricity connection which was disconnected for non-payment. She applied for and obtained a fresh connection in her own name. That connection was then discontinued on the footing that the landlord's earlier default at the same premises had not been cleared and that the landlord's consent was missing. She challenged the respondent's order dated 11 March 2018 in this writ.

On 2 April 2018 the Court directed restoration if she deposited Rs 5,000, and the connection was restored. Dakshinanchal Electricity Distribution Corporation Ltd. later said she had defaulted after the fresh connection; notices issued; the supply was temporarily disconnected and then permanently disconnected on 4 July 2023. She replied that she had deposited the dues and that the disconnection was arbitrary. The respondents said only part of the post-2 April 2018 dues had been paid; she said the entire amount had been deposited and there was no default.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — relegation to Clause 6.5; time-bound statement of liability, objection, and reasoned order

QUESTION

Where the parties dispute whether a tenant-consumer has paid electrical dues after an interim restoration, will the writ court decide that controversy or relegate the consumer to Clause 6.5?

HOLDING

The writ court will not enter the factual dispute. The consumer is relegated to Clause 6.5 of the U.P. Electricity Supply Code, 2005 for resolution of the billing dispute. The petitioner may approach the concerned authority with a copy of the order; the authority shall furnish details of the petitioner's liability within one week; the petitioner may submit an objection within two weeks; the authority shall pass a reasoned order within six weeks thereafter. The writ petition is disposed of. ¶ 7-10

FLAG Source PDF also contains orders of 2.4.2018 (interim restoration on deposit of Rs 5,000), 10.5.2018 (dismissed for non-prosecution), 13.7.2018, 16.7.2018 (restored), 1.4.2024, 8.4.2024, 19.4.2024, 2.7.2024 and 30.8.2024; the operative disposal is 1.7.2025 (Ashwani Kumar Mishra and Jayant Banerji JJ.). The 2.4.2018 order described the arrears as those of the 'erstwhile tenant'; the 1.7.2025 order treats them as the landlord's default at the same premises. Clause 6.5 is cited without sub-clause.

billing-objection-to-executive-engineer-under-6.5

An apparent dispute over post-restoration electrical dues is a billing dispute for Clause 6.5. The writ court directs the concerned authority to furnish the liability, receive the consumer's objection, and pass a reasoned order on a fixed timetable, without deciding the quantum. ¶ 8-10

disputed-questions-of-fact-not-adjudicable-under-article-226

The licensee said only part of the dues after 2.4.2018 had been paid; the consumer said the entire amount had been deposited. The Court declined to enter that controversy and relegated the parties to Clause 6.5. ¶ 7-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE LANDLORD'S UNPAID ARREARS AT THE SAME PREMISES, OR WANT OF LANDLORD CONSENT, JUSTIFIED DISCONNECTING THE PETITIONER'S FRESH CONNECTION (THE 11 MARCH 2018 ORDER)

Recited as the original cause of disconnection; not examined. The Court treated the live controversy as a post-2.4.2018 billing dispute under Clause 6.5. ¶ 1-2, 8

NOT DECIDED — WHETHER THE PETITIONER DEFAULTED ON DUES AFTER THE 2.4.2018 RESTORATION, AND WHETHER THE 4.7.2023 PERMANENT DISCONNECTION WAS LAWFUL

Left to the Clause 6.5 authority after a statement of liability and objection. ¶ 4-8

NOT DECIDED — QUANTUM OF THE PETITIONER'S ELECTRICAL LIABILITY

The authority is to furnish details of liability; the Court expressed no opinion on the amount. ¶ 7-9

SCJ-363 · Smt. Laxmi Chaurasiya v. Dakshinanchal Electricity Distribution Corporation Ltd. and 4 Others · 2025:AHC:101014-DB · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.